

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
JOHN PINDER

Index No.
Date Purchased:

Plaintiff(s),
-against-

SUMMONS

Plaintiff Designates Kings
County as Place of
Trial

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. SHAUN CLARKE
Shield # No 7769 and P.O. RONALD CHRIBOGA
Shield# 13300 and POLICE OFFICERS JOHN DOES# 1-6

The Basis of Venue is
Defendant's Residence

Defendant(s).
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Defendant Resides at
263 Madison Ave
Brooklyn, NY 11216

To The Above Named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
February 21, 2022

_____/S/_____
Rehan Nazrali Esq
Attorneys for Plaintiff(s)
299 Broadway, 17th Fl
New York, NY 10007
(646) 331-9378

Defendants' Addresses:

The City of New York
Corporation Counsel
100 Church Street
New York, N.Y. 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10038

P.O. SHAUN CLARKE
Shield # No 7769
One Police Plaza
New York, N.Y. 10038

P.O. RONALD CHRIBOGA
Shield# 13300
One Police Plaza
New York, N.Y. 10038

Police Officers John Does 1-6
One Police Plaza
New York, N.Y. 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOHN PINDER

Plaintiff,

VERIFIED COMPLAINT
Index No.:

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. SHAUN CLARKE
Shield # No 7769 and P.O. RONALD CHRIBOGA
Shield# 13300 and POLICE OFFICERS JOHN DOES# 1-6
Defendant(s).

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Plaintiff, JOHN PINDER by his attorney, REHAN NAZRALI, ESQ., as and for his verified
complaint herein, respectfully set forth and allege, upon information and belief, as follows:

PARTIES

1. That at all times hereinafter mentioned, the plaintiff, JOHN PINDER was and still is a resident of the County of Kings, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is an agency and/or department of the City of New York, authorized and existing under and by virtue of the laws of the City and State of New York.
4. At all relevant times hereto defendant NYPD, pursuant to the laws of the City and State of New York establishing its existence and authorizing its operations, operated, controlled, directed, managed and supervised its employees and particular its Police Officers thereto.

5. At all relevant times hereinafter, the defendant CITY, its agents, servants and employees operated, maintained and controlled the NYPD, and all the police officers thereof, in particular defendant P.O. SHAUN CLARKE (Officer "CLARKE") Shield.#7769 and Police Officer RONALD CHIRIBOGA (see hereinafter "CHIRIBOGA") as Police Officers in the 79th Precinct.
6. At all relevant times hereinafter mentioned, and on or prior to November 22, 2020 Defendants, Police Officers CLARKE and CHIRIBOGA were employed by the CITY, as police officers and assigned to the NYPD - 79th Precinct.
7. At all relevant times hereinafter, the defendant CITY, its agents, servants and employees operated, maintained and controlled the NYPD, and all the police officers thereof, in particular defendant POLICE OFFICER JOHN DOES #1-6. as Police Officers in the 79th Precinct
8. Upon information and belief, at all relevant times hereinafter mentioned, and on or prior to November 22, Defendants, Police Officers JOHN DOES #1-6 were employed by the CITY, as Police Officers and assigned to the NYPD - 79th Precinct.

CONDITIONS PRECEDENT

9. That on or about May 20, 2021 Plaintiff Notice of Claim was duly filed with the Comptroller's office of the City of New York and with the NYPD.
10. That said Notice of Claim was filed within 90 days after the causes of action had accrued and as such more than thirty (30) days have elapsed since the filing of said Notice and this matter has not been settled or otherwise disposed of.
11. That the Plaintiff on June 28, 2021 has submitted to an inquiry concerning the justness of his claims as provided by section 50-H of the General Municipal Law by attending a 50-H hearing via Zoom organized and held by outside counsel for the CITY, Suzanne Billig PC 160 Broadway #720, NY, NY 10038
- 12 That his action is being commenced within one (1) year and ninety (90) days of the occurrence complained of herein.

FACTUAL ALLEGATIONS

13. On November 21, 2020, Plaintiff was the operator of a 2008 Ford Van Motor Vehicle

14. That at all relevant times hereinafter Plaintiff was operating this motor vehicle at the intersection of Marcus Garvey Boulevard and Fulton Street, Brooklyn, Kings County, City of New York.
15. That at all relevant times hereinafter Plaintiff was operating his 2008 Ford Van in a Southerly direction on Marcus Garvey Boulevard just North of its intersection with Fulton Avenue.
16. That at all relevant times hereinafter Plaintiff was turning West from Marcus Garvey Boulevard onto Fulton Street
17. That at all relevant times while turning West on Fulton Street an Unknown Subject ((hereinafter US#1), a black, female, approx 25-40 years in age, medium height and weight operating a black nissan maxima with Georgia State Lic RWB9503 disregarded the traffic control devices governing the forward motion of her vehicle brought the left front part of her motor vehicle into contact with the right midsection and posterior portions of Plaintiff's vehicle.
18. That at all relevant times Plaintiff brought his vehicle to a stop at the time of the contact, while US#1 continued with her forward progress and proceeded westerly about 20 yards.
19. That at all relevant times Plaintiff exited his vehicle and spoke to US#1 about the unwarranted and improper contact she had made with his vehicle.
20. That at all relevant times US#1 became agitated and aggressive toward the Plaintiff.
21. That at relevant times hereinafter Plaintiff backed away from US#1 and using his cell phone called up his sister, Eulie Pinder, and Mother Joy Wilson.
22. That at all relevant times hereinafter upon arrival at the accident scene about 10 minutes later, Plaintiff's mother and sister exited their vehicle and approached Plaintiff where and when they begun discussing the accident with Plaintiff whereupon US#1 did walk up to where Plaintiff was having a conversation with his sister and did accost Plaintiff's sister, Eulie Pinder, and threatened her with violence.
23. That at all relevant times while words were being exchanged between Eulie Pinder and US#1, a passerby and soon to be interloper, (hereinafter US#2), a black male, 22-35 years in age, medium height and weight, dressed in a black security guard type uniform, appeared on the scene and stepped up to confront Eulie Pinder
24. That at all relevant times hereinafter,said US#2 after telling her that he is a licensed security guard with the authority to shoot her and or pepper spray her. then attempted to strike Eulie.

25. That at all relevant times hereinafter Plaintiff having watched both US#1 and US#2 become aggressive, saw US#1 lunge at Eulie, stepped up and pulled Eulie back.
26. That at all relevant times hereinafter after Plaintiff pulled his sister away from the lunging US#1 assailant US#2 suddenly threatened Eulie by exclaiming: "Bitch. I'll fuck you up."
27. That at all times hereinafter US#2 then pepper sprayed Plaintiff in his eyes (with overspray onto Eulie).
28. That while Plaintiff was attempting to clear his eyes from the pepper spray, two additional unknown subjects, hereinafter US#3 and US#4, suddenly arrived in another vehicle that upon information and belief was a Federal Express vehicle.
29. That upon information and belief US#3 and US#4, both black males, 22-35 years of age, with varying medium to stocky builds and heights, wearing Federal Express uniforms US#3 and US#4 charged at Plaintiff while he was defenseless due to the pepper spray.
30. That one of them produced a pocket knife that he used to cut Plaintiff and his sister, Eulie.
31. That Plaintiff was able to disengage from the attackers and took shelter in his van. All three interlopers disappeared but suddenly, forth interloper, Unknown Subject #5, a black male, 22-35 years of age, medium weight and height wearing a white and black hoodie approached Plaintiff's van, smashed a window and threw in an object that ultimately turned out to be an air-pistol.
32. That, at this point, feeling unsafe, Plaintiff, together with at least eight other adult witnesses, which included his sister Eulie, his mother, his brother-in-law and several others drove in separate vehicles directly to the NYPD 79th Precinct.
33. That, at the Precinct, Plaintiff together with the 8 witnesses, including his mother Joy Wilson and Eulie Pinder recounted the above facts about the incident.
34. That POM Shaun Clarke Shield # 7769 and POM Ronald Chiriboga Shield # 13300 interviewed the Plaintiff and his other witnesses.
35. That no investigation was made of the motor vehicle collision. No MV104 was filed by POM Clarke or anyone else from the NYPD. No investigation was made with respect to the Plaintiff having been pepper-sprayed. No investigation was made of Plaintiff having been cut by an interloper wielding a dangerous knife (although an ambulance was called to the precinct that treated Plaintiff for a cut to his arm and pepper spray in his eyes)
36. That Plaintiff was the only person arrested, charged by POM Clarke with Menacing in the Second Degree; Criminal Possession of a Weapon in 4th Degree; Menacing in the Third

- Degree; Harassment in the Second Degree; Possession of Knives, etc. (Administrative Code violation only); Criminal Possession of a Forged Instrument; and possession of an air pistol.
37. That POM Clarke lacked reasonable cause to believe that Plaintiff had committed a crime.
 38. That Plaintiff was forced to defend himself in court against a false and malicious prosecution that persisted until all charges were dismissed on the People's own motion on February 22, 2021.
 39. The failure of the People to present to the Grand Jury for more than six months bears witness to the subjective awareness of the prosecutorial staff that there was no case to prove against the Plaintiff.
 40. This awareness did not emerge all at once in February 2021, but the People were chargeable with notice that there was no case some time before dismissing the case. Plaintiff is entitled to compensation for being leashed to the Courthouse by the conditions of his release while the charges were pending.
 41. That the conduct of POM's Clarke and Chiriboga reflected systemic racism and bias against Blacks and African American in violation Section 1983 and the 4th and 14th Amendment of the US and similar provisions of the New York State constitutions, in so far as these police officers, the 79th Precinct and the NYPD, under color of state law, did impermissibly discriminate against Plaintiff on the basis of his race in their decision to arrest him when there was no reasonable basis.
 42. That the criminal complaint was improperly drawn, failing to state facts constituting the crime of criminal possession of a forged instrument, failing to state the location at which Claimant was arrested and failing to state how it was that POM Clarke came to know of the tangible evidence of criminal conduct.
 43. That further evidence of POM Clarke's animus can be found in his failure to investigate the motor vehicle collision and the pepper-spraying of the Plaintiff.
 44. That the impropriety of POM Clarke and Chiriboga's handling of the occurrence is reinforced by them utterly disregarding that Plaintiff is the one who brought the "machete-knife" to the Police, as well as the one who brought the air-pistol to the Precinct besides being the actual victim of two attacks.
 45. That only intentional systemic racism and or gross negligence of these officers and NYPD explains how the Claimant, who sought out the protection of the Police and had at least eight black male and female adult witnesses, in the precinct with him, who either gave or were

- willing to give factual alibi statements corroborating claimant's accounts of the incident, nonetheless ended up being the only one charged with misconduct.
46. That the above described conduct that took place on November 22, 2020 through to February 22, 2021 at the subject times and places by the defendant CITY through and/or by the actions of its agents, servants and employees, namely Police Officers CLARKE and CHIRIBOGA's and the other Police Officers John Does#1-6 who were in the precinct and witnessed the aforesaid events constitutes, variously, false arrest, false imprisonment, assault, battery, abuse of process, failure to intervene and malicious prosecution.
47. By their conduct, defendant CITY and through and/or by the actions of its agents, servants and employees, namely the aforesaid Police Officers under color of law, pursuant to U.S.C §1983, deprived Plaintiff of his State and Federal constitutional right to be free from false arrest, false imprisonment, assault, battery, abuse of process, failure to intervene and malicious prosecution among others.
48. That the NYPD Officers, including but not limited to Police Officer CLARKE and CHIRIBOGA's in the course of their wrongful conduct described in the foregoing paragraphs, were acting in the course of and in furtherance of their employment for defendants CITY and NYPD and as such, as their employer, said Municipal respondents are liable for their wrongful conduct.
49. Additionally, and upon information and belief, defendants CITY by and through the NYPD, failed in their duty to train, retain, manage, control and supervise their agents, servants, employees and personnel in the proper safe and secure manner in which to arrest individuals without fabricating false charges in order to justify wrongful conduct and to intimidate victims and such failure resulted in an improper and unreasonable false charges being used and leveled on Plaintiff, which conduct proximately contributed to the plaintiffs injuries of November 22, 2020 through February 22 , 2021 as described above.
50. That as a result of the aforementioned wrongful, negligent, careless, and reckless conduct of the aforesaid Defendants, Plaintiff sustained the injuries herein alleged.
51. That the Plaintiff has suffered a severe shock to his nervous systems, and has become emotionally distressed thereto. That the Plaintiff has suffered severe and agonizing pain, and is informed, and believes that such pain will continue indefinitely. That the Plaintiff's general health has been damaged and the functions of his body has been greatly impaired. That the Plaintiff has had to spend large sums of money for medical care and attention, and are

informed and believe that in the future it will be necessary for him to continue to do so indefinitely. That as a result of Defendants' intentional acts and negligence, the Plaintiff has been damaged in an amount to be determined after trial.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 USC §1983
AS AGAINST DEFENDANTS CITY, POLICE OFFICERS CLARKE AND CHIRIBOGA
AND POLICE OFFICERS JOHN DOES# 1-6

52. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 51 of this civil complaint as though fully plead and re-alleged in their entirety below.
53. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.
54. That the above described arrest and consequential imprisonment that began on November 22, 2020 at the subject times and place by the defendants CITY and NYPD through and/or by the actions of their agents, servants and employees, namely Police Officer CLARKE and CHIRIBOGA and POLICE OFFICERS JOHN DOES# 1-6 constitutes false arrest and false imprisonment on the aforementioned charges without probable cause in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
55. That at the time of Plaintiff's arrest, Defendants Police Officer CLARKE and CHIRIBOGA and POLICE OFFICERS JOHN DOES# 1-6 acted under color of law and were exercising their responsibilities pursuant to state law and under the directives of the Defendants CITY and NYPD.
56. That at the time of Plaintiff's arrest, the Defendants CITY and NYPD through and/or by the actions of its agents, servants and employees, namely Defendants Defendants Police Officer CLARKE and CHIRIBOGA and POLICE OFFICERS JOHN DOES# 1-6 lacked probable cause: (a) to believe that Plaintiff had committed a crime of resisting arrest; (b) to believe that the Plaintiff was about to commit the crime of resisting arrest; and (c) to commence a criminal prosecution against Plaintiff on the false criminal charges described above.
57. That at the time of Plaintiff's arrest, the Defendants CITY and NYPD through and/or by the actions of their agents, servants and employees, namely Defendants Police Officer CLARKE

and CHIRIBOGA and POLICE OFFICERS JOHN DOES# 1-6 acted with malice and hatred towards Plaintiff as the motivation for his fabricated and false charges of Second Degree; Criminal Possession of a Weapon in 4th Degree; Menacing in the Third Degree; Harassment in the Second Degree; Possession of Knives, etc. (Administrative Code violation only); Criminal Possession of a Forged Instrument; and possession of an air pistol

58. That as a result of the false charges brought against Plaintiff, he was taken into police custody and subjected to additional false grounds for incarceration.
59. That at all relevant times hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees of each of defendants CITY and NYPD who were at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.
60. That by reason of the foregoing, Plaintiff was injured; was rendered sick sore lame and disabled; was and or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect.
61. That solely by reason of the above, the Plaintiff has been damaged in an amount equal to or in excess of the jurisdictional limits of this Court .

AS AND FOR A SECOND CAUSE OF ACTION
AS AGAINST DEFENDANTS CITY FOR MONELL
VIOLATIONS OF PLAINTIFFS CIVIL RIGHTS UNDER 42 USC SECTION 1983

62. That the Plaintiff, hereby incorporates by reference each and every preceding paragraphs 1 through 61, of this Complaint as though fully plead and re-alleged in their entirety below.
63. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures.
64. That the CITY failed to take the steps necessary to properly train, supervise or otherwise instruct its officers, including but not limited to Police Officer CLARKE and CHIRIBOGA and POLICE OFFICERS JOHN DOES# 1-6 in the proper manner of making arrests; in the proper and strict adherence to their anti-racist, moral and professional obligations to intervene to stop the same where such improper arrest is being made in their presence and in the proper and strict adherence to their duties and obligations not file false criminal charges

and thus abuse process to shield themselves from liability as against those individuals who they have knowingly wronged.

65. That the CITY commenced a comprehensive city wide policy regarding the removal of toy pistols and or imitation guns from the streets of New York City.¹
66. That Defendants CITY and NYPD and all their principals, based on the above policy, thereto knew or should have known to a moral certainty that Police Officer CLARKE and CHIRIBOGA and POLICE OFFICERS JOHN DOES# 1-6 would encounter situations where they would have to make arrests of persons of color suspected of ownership and or possession of imitation pistols who were also otherwise lawfully walking on New York City sidewalks.
67. That the CITY and NYPD enforcement officers responsible for making arrests of such similar situated persons like the Plaintiff have reported in the media that there are structural and racial inadequacies in the policies by which such enforcement officers are trained and managed regarding the arrest of persons of color accused of possession of imitation pistols.
68. That the NYPD Patrol Guide Procedure requires Police Officers to not fabricate false charges against persons of color who they encounter on the streets of New York City who have not committed such crimes.
69. That notwithstanding the NYPD Patrol Guide Procedures on the proper and lawful manner of arresting such similarly situated persons as Plaintiff, the NYPD was and is grossly negligent in training and supervising their own employees and subordinates in the impropriety and illegality of filing of false charges against innocent persons of color traversing upon the streets of the City of New York.
70. That in having a policy in place where NYPD enforcement Officers seek to remove imitation pistols from the streets of New York City where such police forces have a systemic problem with misconduct as against persons of color and who have also become increasingly militarized in both their tactics and strategies in the use of force, and thus become increasingly desensitized to the improper means and use of police power as against persons of color,² was and is grossly negligent to the safety of such persons as Plaintiff, in that such training exposes

¹ nyc.gov/html/records/pdf/govpub/838toyguns.pdf

² <https://www.nytimes.com/2011/12/04/sunday-review/have-american-police-become-militarized.html>;
https://en.wikipedia.org/wiki/Militarization_of_police; <https://www.nybooks.com/daily/2020/06/03/how-police-became-paramilitaries/>; <https://www.pnas.org/content/115/37/9181>; <https://www.wnyc.org/story/militarization-american-police-departments/>; <https://www.newyorker.com/news/news-desk/do-not-resist-and-the-crisis-of-police-militarization>; <https://www.britannica.com/topic/Militarization-of-the-Police-in-the-U-S-The-2008914>;
<https://www.aclu.org/report/war-comes-home-excessive-militarization-american-police>

such Police officers to the wrong ethos and tactics in the making of arrests against and upon innocent pedestrians lawfully walking upon the streets of New York City and thus the CITY improperly trained such Police Officers in the constitutional manner of making arrests, the reporting of same to the proper authorities where such false arrest is made, the duty to intervene to prevent abuse by such false arrest and duty to not file false charges to shield themselves from lawful prosecution.

71. That upon Information and belief, the Defendant CITY knew or should have know that their policy and practice of having Police officers aggressively seek out and arrest persons who allegedly possess imitation pistols and who are otherwise a heavily armed and militarized constabulary forces, would act in a manner inconsistent with constitutional mandates to not make false arrests and file false charges against such falsely arrested persons, from notice of claims, lawsuits, complaints and their own observations that such individual officers because of their improper training and supervision were unfit to be Police Officers, that it was highly likely that they would commit the alleged acts alleged in the present case, and as such, they exhibited deliberate indifference to the rights of others by failing to act on such information³ indicating that unconstitutional acts were occurring.
72. That the conduct of the defendants CITY, NYPD and its Police Officers violated Plaintiff's rights under 42 USC Section 1983, the Fourth and Fourteenth Amendment, the Constitution of the United States and the laws of New York State by failing to properly train, supervise and retrain Police Officers in failing to adequately discipline the defendant subordinate agents and employees, failing to adequately investigate prior complaints against the defendant subordinate agents and employees, and by acting in a manner which amounted to negligent hiring, training, monitoring and retention of incompetent employees in violation of state and federal law.
73. That the aforementioned individual subject Police Officer actions were committed under color of state law and that these acts deprived the Plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.
74. As a direct and proximate result of the misconduct and abuse detailed above, Plaintiff experienced personal and physical injuries, conscious pain, emotional distress, mental anguish, embarrassment, and humiliation.

³ See Supra footnotes 1

75. That solely by reason of the above, the Plaintiff has been damaged in an amount equal or in excess of the jurisdictional limits of this Court .

AS AND FOR A THIRD CAUSE OF ACTION
FOR FAILURE TO INTERVENE UNDER 42 USC § 1983 AS AGAINST POLICE
OFFICERS JOHN DOES #1 through #6

76. The **PLAINTIFF**, hereby incorporates by reference each and every preceding paragraph 1-75 of this Complaint as though fully plead and re-alleged in their entirety below.
77. That the Fourth Amendment and fourteenth of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.
78. That the Defendants Police Officers JOHN DOES # 1-6 had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other police officers.
79. That said Defendants failed to intervene to prevent the unlawful conduct described herein.
80. That the aforementioned individual subject JOHN DOE #1-6 defendants actions were committed under color of state law and that these acts “deprived the plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.”
81. That the subject Police Officers who were present while Plaintiff was wrongfully injured by fellow Police officers and failed to intervene to prevent other law enforcement officers from infringing the constitutional rights of citizens are liable under § 1983 as those officer had reason to know: (1) that a false arrest and imprisonment was being made and occurring thereto in their presence, (2) that constitutional violations had been committed by a law enforcement official; and that these officers had a realistic opportunity to intervene to prevent the harm from occurring.
82. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant Police officers who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.
83. That as a result of the foregoing, Plaintiff’s was unwarrantedly assaulted and battered, suffered abuse of process, false arrest and false imprisonment on a false charge, was

maliciously prosecuted and he was put in fear of his safety, and was humiliated and subject to other physical constraints and injuries.

84. By the reason of the foregoing, Plaintiff, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and Plaintiff has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and Plaintiff will be unable to pursue Plaintiff's usual duties with the same degree of efficiency as prior to this occurrence all to Plaintiff's great damage.
85. That solely by reason of the above, the Plaintiff has been damaged in an amount equal or exceed the jurisdictional limits of this Court .

AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS UNDER CIVIL RIGHTS LAW 42 USC §1983 ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER CLARKE, CHIRIBOGA AND POLICE OFFICERS JOHN DOES# 1-6

86. That the Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 85, of this civil complaint as though fully plead and re-alleged in their entirety below.
87. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures, including intentional acts of violence; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.
88. That the Plaintiff is informed and believes and thereon alleges, that such acts of Defendants CITY, and each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees were intentional, extreme, and outrageous. Plaintiff is further informed and believes and thereon alleges that such actions were done with the intent to cause serious emotional distress or with reckless disregard of the probability of causing Plaintiff serious emotional distress.
89. That the aforementioned individual subject Defendant Police Officer's actions were committed under color of state law and that these acts deprived the plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.

90. At all relevant times hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY, NYPD and the aforementioned defendant Police officers as agents, servants and employees of each of defendant CITY were at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.
91. That as a direct, legal and proximate result of such acts of the said Defendants and each of them, including Defendant(s) P.O CLARKE and CHIRIBOGA and POLICE OFFICERS JOHN DOES# 1-6 as their agents, servants and or employees Plaintiff, sustained injuries to various parts of his head, body, limbs and nervous system and, upon information and belief, some of his injuries are of a permanent and/or protracted nature; that by reason thereof, he was confined to hospital, bed and home and prevented from attending to his usual business and/or occupation, and sustained a loss of earnings and he was required and will be required to obtain medical aid and attention in an effort to cure and alleviate his injuries.
92. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court .

AS AND FOR A FIFTH CAUSE OF ACTION
FOR ABUSE OF PROCESS UNDER CIVIL RIGHTS LAW 42 USC §1983 AS AGAINST
DEFENDANTS CITY, ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE
OFFICERS CLARKE, CHIRIBOGA AND POLICE OFFICERS JOHN DOES# 1-6

93. The **Plaintiff** hereby incorporates by reference each and every preceding paragraphs 1 through 92 of this Complaint as though fully plead and re-alleged in their entirety below.
94. That the Fourth, Fourteenth and Fifth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; wrongful and false charges being filed against persons to deprive them of constitutional protections and provides that warrants shall issue only upon probable cause, supported by oath or affirmation.
95. That the above described actions of the Defendants CITY and NYPD and more specifically, their agents, servants and employees, to wit Police Officers CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 constitutes abuse of process in that these Officers intentionally, willfully, and maliciously fabricated and or failed to prevent the fabrication thereof the aforementioned charges as against Plaintiff with the intent to cover up the above false arrest and assault and battery upon him, among other wrongs, and the defendants knowingly and intentionally abused the process of prosecution in this perverted manner to

shield themselves from potential legal action to be taken against them by their employers, to wit Defendant CITY.

96. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant Police officers as agents, servants and employees of each of defendants CITY who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.
97. That the aforementioned individual subject individual defendants actions were committed under color of state law and that these acts 'deprived plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.'"
98. By the reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.
99. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION UNDER CIVIL RIGHTS LAW 42 USC §1983 AS
AGAINST DEFENDANTS CITY, ON BEHALF OF PLAINTIFF AS AGAINST
CITY, POLICE OFFICER CLARKE, CHIRIBOGA AND POLICE OFFICERS
JOHN DOES# 1-6

100. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 99 of this Complaint as though fully plead and re-alleged in their entirety below
101. That at all relevant times Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 were agents of the CITY and NYPD and acting within the scope of their duties as law enforcement officers

102. That the CITY by and through its agents, servants and employees, including Defendants Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 initiated and continued a criminal proceeding against Plaintiff in bad faith, insofar as these police officers, upon information and belief, upon review and investigation of the facts of the within matter became and or were made aware or should have been aware of exculpatory and or exonerating evidence in Plaintiff's favor, to wit, the eight alibi witnesses who clearly presented testimony showing that Plaintiff had no ownership of the aforementioned air gun which was owned by another persons, preceding the initiation of criminal proceedings, and notwithstanding same pursued and or initiated his prosecution by presenting incomplete, incorrect information to the CITY Prosecutor, which, because of the suppression of evidence or other law enforcement conduct undertaken in bad faith, lacked and was without probable cause
103. That the criminal proceedings and prosecution thereto terminated completely in Plaintiff's favor on or before February 22, 2021
104. That the CITY lacked probable cause to commence and to continue the criminal proceeding against Plaintiff since, at all relevant times, the CITY, including agents Police Officer CLARKE and CHIRIBOGA and Police Officers JOHN DOES# 1-6, knew, or possessed information, that Plaintiff's prosecution for the aforementioned charges lacked probable cause and that defendants could not evince any facts or circumstances which could lead a reasonable person to believe that Plaintiff was guilty of the crimes charged.
105. That the CITY lacked probable cause to commence and to continue the criminal prosecution against Plaintiff.
106. That the Defendants Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6,, at all relevant times, were motivated by actual malice.
107. At all relevant times, the defendants' actions were motivated by bad faith, actual malice, and were not justified, excused or privileged.
108. That the aforementioned individual subject individual defendants actions were committed under color of state law and that these acts 'deprived the Plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.
109. By the reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and will be permanently caused to suffer pain and inconvenience and other effects of such injuries;

and has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.

110. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court

AS AND FOR A SEVENTH CAUSE OF ACTION FOR BATTERY UNDER
CIVIL RIGHTS LAW 42 USC §1983
ON BEHALF OF PLAINTIFFS AGAINST CITY, AS AGAINST CITY, POLICE OFFICER
CLARKE, CHIRIBOGA AND POLICE OFFICERS JOHN DOES# 1-6

111. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 110, of this civil complaint as though fully plead and re-alleged in their entirety below.

112. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation.

113. That at all relevant times as set forth herein, Defendants CITY, and each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA and Police Officer JOHN DOES# 1-6 as their agents, servants and or employees, intended to cause and did cause harmful, unwanted, unwelcome contact with Plaintiff's person.

114. That Plaintiff did not consent to the defendant(s), and each of them, their agents, servants and/or employees' acts.

115. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees who were at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

116. That the aforementioned individual subject individual defendants actions were committed under color of state law and that these acts 'deprived plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.'"

117. That as a result of these intentional acts of the defendant(s), and each of them, their agents, servants and/or employees, the Plaintiff,, sustained injuries to various parts of his head, body,

limbs and nervous system and, upon information and belief, some of his injuries are of a permanent and/or protracted nature; that by reason thereof, he was confined to hospital, bed and home and prevented from attending to his usual business and/or occupation, and sustained a loss of earnings and he was required and will be required to obtain medical aid and attention in an effort to cure and alleviate his injuries.

118. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court

AS AND FOR A EIGHTH CAUSE OF ACTION
FOR ASSAULT UNDER CIVIL RIGHTS LAW 42 USC §1983
ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER CLARKE, CHIRIOBOGA
AND POLICE OFFICERS JOHN DOES# 1-6

119. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 118, of this civil complaint as though fully plead and re-alleged in their entirety below.

120. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures.

121. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees, intended to cause and did cause the Plaintiff to fear an imminent threat of harm and or harmful contact with Plaintiff's person.

122. That Plaintiff did not consent to the defendants, and each of them, their agents, servants and/or employees act.

123. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

124. That the aforementioned individual subject individual defendants actions were committed under color of state law and that these acts deprived Plaintiff of rights, privileges, or immunities secured by the Constitution or laws of the United States.

125. That as a result of these intentional acts of the Defendants, and each of them, their agents, servants and/or employees, the Plaintiff sustained injuries to various parts of his head, body, limbs and nervous system and, upon information and belief, some of his injuries are of a

permanent and/or protracted nature; that by reason thereof, he was confined to hospital, bed and home and prevented from attending to his usual business and/or occupation, and sustained a loss of earnings and he was required and will be required to obtain medical aid and attention in an effort to cure and alleviate his injuries.

126. That solely by reason of the above, the Plaintiff has been damaged in an amount that equals or exceeds the jurisdictional limits of this Court

AS AND FOR AN NINTH CAUSE OF ACTION
FOR DENIAL OF RIGHT TO A FAIR TRIAL UNDER CIVIL RIGHTS LAW 42 USC §1983
ON BEHALF OF PLAINTIFF AS AGAINST CITY,POLICE OFFICER CLARKE, CHIRIBOGA
AND POLICE OFFICERS JOHN DOES# 1-6

127. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 126, of this civil complaint as though fully plead and re-alleged in their entirety below.

128. That the Fourth and Fourteenth Amendment of the Constitution of the United States protects the right to be free from unreasonable searches and seizures; provides that warrants shall issue only upon probable cause, supported by oath or affirmation

129. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees, did deprive Plaintiff of his civil, constitutional and statutory rights under color of law and is liable to Plaintiff under 42 USC 1983.

130. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees, did deprive of his right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to the United States Constitution.

131. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees, created false information likely to influence a jury's decision and then forwarded that information to prosecutors, resulting in Plaintiff suffering a deprivation of liberty and a violation of his rights.

132. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents,

servants and employees who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

133. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A TENTH CAUSE OF ACTION FOR A PENDENT STATE CLAIM FOR MALICIOUS PROSECUTION ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER CLARKE, CHIRIBOGA AND POLICE OFFICERS JOHN DOES# 1-6

134. The Plaintiff, hereby incorporates by reference each and every preceding paragraph, numbered 1 through 133, of this Complaint as though fully plead and re-alleged in their entirety below.

135. That all relevant times set forth herein Defendants CITY and NYPD and each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA AND Police Officers JOHN DOES# 1-6 as their agents, servants and or employees did commence a criminal proceeding against the Plaintiff, that the same prosecution terminated in Plaintiff's favor, and that there was an absence of a reasonable finding of both probable cause and actual malice to initiate such same criminal proceeding against the Plaintiff.

136. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

137. That by reason of the aforesaid unlawful and malicious prosecution and criminal charges and hearings, the Plaintiff was deprived of his liberty, was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

138. That by reason of the aforesaid, the Plaintiff was injured in Mind and Body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

139. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A ELEVENTH CAUSE OF ACTION FOR PENDENT STATE CLAIM FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF PLAINTIFF AS AGAINST CITY, POLICE OFFICER CLARKE, CHIRIBOGA AND POLICE OFFICERS JOHN DOES# 1-6

140. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 139, of this civil complaint as though fully plead and re-alleged in their entirety below.

141. Plaintiff is informed and believes and thereon alleges, that such acts of Defendants CITY, and NYPD each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees were intentional, extreme, and outrageous. Plaintiff is further informed and believes and thereon alleges that such actions were done with the intent to cause serious emotional distress or with reckless disregard of the probability of causing Plaintiff serious emotional distress.

142. At all relevant times hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees of each of defendants CITY and NYPD who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

143. That as a direct, legal and proximate result of such acts of the Defendants and each of them, including Defendant(s) Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 as their agents, servants and or employees Plaintiff, sustained injuries to various parts of his head, body, limbs and nervous system and, upon information and belief, some of his injuries are of a permanent and/or protracted nature; that by reason thereof, he was confined to hospital, bed and home and prevented from attending to his usual business and/or occupation, and sustained a loss of earnings and he was required and will be required to obtain medical aid and attention in an effort to cure and alleviate his injuries.

144. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A TWELFTH CAUSE OF ACTION FOR A PENDENT STATE CLAIM FOR FAILURE TO INTERVENE AS AGAINST POLICE OFFICERS JOHN DOES# 1-6

145. The Plaintiff, hereby incorporates by reference each and every preceding paragraph 1 through 144 of this Complaint as though fully plead and re-alleged in their entirety below.
146. That the Defendant individual Police Officers JOHN DOES# 1-6 had an affirmative duty to intervene on behalf of PLAINTIFF, whose constitutional rights were being violated in their presence by other police officers.
147. That said Defendants failed to intervene to prevent the unlawful conduct described herein.
148. That at all relevant time hereto, Plaintiff is informed and believes and thereon alleges that defendants CITY and NYPD employed the aforementioned defendant officers as agents, servants and employees of each of defendants CITY and NYPD who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.
149. That as a result of the foregoing, Plaintiff's was unwarrantedly assaulted and battered, suffered, abuse of process, false arrest and false imprisonment on a false charge and malicious prosecution, among others, and he was put in fear of his safety, and he was humiliated and subject to other physical constraints and injuries.
150. By the reason of the foregoing, Plaintiff, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and Plaintiff has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and Plaintiff will be unable to pursue Plaintiff's usual duties with the same degree of efficiency as prior to this occurrence all to Plaintiff's great damage.
151. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
FOR PENDENT STATE CLAIM FOR NEGLIGENCE IN HIRING AND RETAINING
AS AGAINST DEFENDANT CITY

152. The Plaintiff, hereby incorporates by reference each and every preceding paragraphs 1 through 151, of this Complaint as though fully plead and re-alleged in their entirety below.
153. That the Defendants Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 lacked the experience, deportment and ability to be employed by Defendants CITY and NYPD; in that Defendants CITY failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees, including but not limited to Defendant Police Officer CLARKE, CHIRIBOGA and Police Officers JOHN DOES# 1-6 who lacked the mental capacity and the ability to function as employees of Defendants CITY; in that the defendant police officer, lacked the maturity, sensibility and intelligence to be employed by Defendant CITY, in that Defendants CITY knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees as police officers; and, in that Defendants CITY, its agents, servants and/or employees were otherwise careless, negligent and reckless by hiring the Defendants Police officers
154. Defendants CITY and knew, or should have known in the exercise of reasonable care, the propensities of the subject Defendant Police Officers to engage in the wrongful conduct heretofore alleged in this Complaint.
155. That Defendants CITY their agents, servants and employees in their failure exercise reasonable care to hire and retain, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, Plaintiff.
156. That the Defendants, CITY, was careless and reckless in hiring and retaining its employees, to wit Police Officers CLARKE, CHIRIBOGA and Police Officer JOHN DOES# 1-6 in that said Defendants lacked the experience deportment and ability to be employed by the defendant CITY.
157. That the Defendants CITY failed to exercise due care and caution in its hiring and retaining practices, and in particular, in hiring and retaining the Defendant police officer employees who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; and in that they hired and retained as an employee of their police

department individuals whose backgrounds contained information (based upon information and belief) that revealed said Defendant employees lacked the maturity, sensibility, and intelligence to be employed by the Defendant CITY; in that the Defendants CITY knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that the Defendant CITY their agents, servants and employees were otherwise careless, negligent, and reckless.

158. That the aforesaid occurrence, to wit, the improper and unreasonable hiring and retaining of Police Officer employees resulted in, battery, assault, false arrest and imprisonment and other wrongs, resulting injuries to Plaintiff's mind and body therefrom were caused wholly and solely by reason of the negligence in the hiring and retention of the Defendant, its agents, servants and employees without any negligence on the part of Plaintiff.

159. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and she was rendered emotionally and mentally distressed and so remains.

160. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
FOR PENDENT STATE CLAIM FOR NEGLIGENCE IN TRAINING AND
SUPERVISING AGAINST DEFENDANT CITY

161. The Plaintiff, hereby incorporates by reference each and every preceding paragraphs 1 through 160, of this Complaint as though fully plead and re-alleged in their entirety below.

162. That the Defendants Police Officer CLARKE, CHIRIBOGA and Police Officer JOHN DOES# 1-6 being employees of the Defendant CITY, were negligently trained and supervised in the performance of their duties in that Defendant CITY failed to exercise due care and caution in its training and supervising practices that would have prevented the subject Officers involved in the subject arrest herein from assaulting, battering, falsely arresting and imprisoning and or detaining Plaintiff and filing false charges against him, among other wrongs.

163. Defendants CITY knew, or should have known in the exercise of reasonable care, that the training and supervision of such Defendants to wit, Police Officer CLARKE, CHIRIBOGA

and Police Officer JOHN DOES# 1-6 was inadequate and insufficient to prevent the same from engaging in the wrongful conduct heretofore alleged in this Complaint.

164. That Defendants CITY, their agents, servants and employees in their failure to exercise reasonable care to train and supervise, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York including, in this instance, the Plaintiff.
165. That the Defendants, CITY was careless and reckless in its training and supervising of its employees, to wit, Police Officer CLARKE, CHIRIBOGA AND Police Officer JOHN DOES# 1-6 in that said Defendants knew and or should have known that assaulting, battering,, filing false charges, abusing process and other wrongful conduct described above was unlawful and wrong and should not have engaged in such wrongful and or unlawful conduct.
166. That the Defendant CITY failed to exercise due care and caution in its training and supervising practices, and in particular, in hiring and retaining the Defendant employees who lacked the mental capacity and the ability to function as an employee of the aforementioned Defendant; and in that it hired and retained as its employees, individuals whose backgrounds contained information (based upon information and belief) that revealed said Defendants lacked the maturity, sensibility, and intelligence to be employed by the Defendants CITY; in that the Defendants CITY knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employee; and, in that the Defendants CITY, their agents, servants and employees were otherwise careless, negligent, and reckless.
167. That the aforesaid occurrence, to wit, the improper and unreasonable training and supervising employees resulted in the assault, battery, false arrest and imprisonment, abuse of process, malicious prosecution, failure to intervene, among other wrongs, and resulting injuries to mind and body therefrom were caused wholly and solely by reason of the negligence of the Defendants CITY, its agents, servants and employees without any negligence on the part of Plaintiff.
168. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

169. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
FOR PENDENT STATE CLAIM FOR ABUSE OF PROCESS AS AGAINST
DEFENDANTS CITY, POLICE OFFICER CLARKE, CHIRIBOGA AND POLICE
OFFICERS JOHN DOES# 1-6

170. The Plaintiff hereby incorporates by reference each and every preceding paragraphs 1 through 169 of this Complaint as though fully plead and re-alleged in their entirety below.

171. That the above described actions of the Defendants CITY and more specifically, their agents, servants and employees, to wit Police Officer CLARKE, CHIRIBOGA and Police Officer JOHN DOES# 1-6 constitutes abuse of process in that these Officers intentionally, willfully, and maliciously fabricated criminal charges as against Plaintiff with the intent to cover up the above described false arrest and imprisonment, assault and battery upon him, and the defendants knowingly and intentionally abused the process of prosecution in this perverted manner to shield themselves from potential legal action to be taken against them by their employers, to wit Defendant CITY.

172. At all relevant time hereto, Plaintiff is informed and believes and thereon alleges that the defendant CITY and NYPD employed the aforementioned defendant Police officers as agents, servants and employees of each of defendants CITY who were was at all times herein acting within the purpose and scope of such agency and employment and as such the CITY is vicariously liable for such officers, agents, servants and employees wrongful conduct thereto.

173. By the reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous attacks and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and will be permanently caused to suffer pain and inconvenience and other effects of such injuries; and has incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of such said injuries; and has suffered and in the future will necessarily suffer additional loss of time from his usual pursuits, duties and activities; and will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence all to his great damage.

174. Plaintiff has been damaged as a result of said defendants actions in an amount believed to equal or exceed the jurisdictional limit of this Court.

WHEREFORE, the Plaintiff demand judgment against the defendants in an amount exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in an amount to be determined upon the trial of this action, together with the costs and disbursements of this action and any other such relief as this honorable Court may deem just, fair and proper, to wit.

- a. Compensatory damages in the sum which equals or exceeds the jurisdictional limits this Court
- b. Punitive damages where permitted in the sum which exceeds the jurisdictional limits of this Court.
- c. Pursuant to §1988 An award of reasonable attorney's fees, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York New York
February 21, 2022

_____/S/_____
REHAN NAZRALI, Esq.
299 Broadway, 17th Floor
New York, NY 10007
Tel: 646-331-9378

VERIFICATION

STATE OF NEW YORK }
 }ss.:
COUNTY OF NEW YORK }

I, the undersigned, an attorney admitted to practice in the courts of New York State, state that I am the attorney for the Plaintiff in the within action: I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by the Plaintiffs is because the Plaintiff reside outside the county in which this office is located. The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Conversations with the Plaintiff and information in our file.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
February 21, 2022

_____/s/_____
REHAN NAZRALI, ESQ.